

served—a requirement for substituted service. (*Id.*) Moreover, the amended POS states that Mica Malan was “served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made).” (5/26/26 POS.)

The Court finds that the POSes here give rise to a presumption that Mr. Malan was duly served as Defendant’s agent for service of process. Despite the initial POS being filed on May 18, 2026 (prior to the filing of Defendant’s motion) and the amended POS being filed May 26, 2026 (prior to the deadline for Plaintiff to oppose the motion), Defendant provides no evidence and submits no Reply contesting the fact set out in the POSes that Mr. Malan was authorized to accept service of process on her behalf and therefore showing that Defendant was personally served under sections 415.10 and 416.90.

Based on the foregoing, the Motion is DENIED.

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JPMorgan Chase Bank, N.A. v. Robert Vega

25CV002610

MOTION TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE

TENTATIVE RULING: Good cause appearing, and no opposition being on file, the motion is GRANTED.